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JUDGMENT SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

C. R. No. 51124 / 2023

Intazamia Committee, Dera Hafiz Muhammad Jamal

VERSUS

District Coordination Officer (Deputy Commissioner),
Sheikhupura & 03 others

JUDGMENT

Date of Hearing:	03.03.2026
Petitioner By:	Mr. Qasim Hassan Buttar, Advocate
Respondents No. 1 & 2 By:	Mr. Sikandar Nisar Saroya, A.A.G.
Respondent No. 3 By:	Sardar Abdul Majeed Dogar, Adovocate
Respondent No. 4 By:	Rab Nawaz Baloch, Advocate Mr. Inam ul Haq Faiz, Advocate

ABID HUSSAIN CHATTHA, J: This Civil Revision is directed against the impugned Judgments and Decrees dated 28.06.2022 and 16.06.2023 passed by Civil Judge and Additional District Judge, Sheikhupura, respectively, whereby, suit for declaration along with permanent injunction of the Petitioner was concurrently dismissed.

2. The background of this case is that private Respondent No. 4 filed W. P. No. 10277 / 2014 seeking a direction to official Respondents for vacation of alleged public property from unlawful possession of the Petitioner and sought its resumption by Respondent No. 3 / Tehsil Municipal Administration, Sharaqpur Sharif (the “**TMA Sharaqpur**”). Report and para-wise comments were called. In response to the allegations leveled in the Petition regarding previous existence of a vegetable market on the site of alleged property statedly owned and possessed by TMA, Sharaqpur and as such, under unlawful possession of the Petitioner, it was stated that TMA, Sharaqpur converted site of the old vegetable market into *Chowk Purani Sabzi Mandi* and the site area was divided into shop plots

which were rented out or sold to various persons. The alleged encroachers in the Petition were in fact described as tenants and purchasers of shops. The allegation of encroachment with respect to Dera Hafiz Muhammad Jamal Din (the “**Dera Jamal Din**”) was denied and TMA, Sharaqpur maintained that nobody has illegally occupied its property. Accordingly, Respondent No. 4 withdrew his Petition vide order dated 15.12.2014.

3. Subsequently, Respondent No. 4 filed another W. P. No. 20462 / 2015 praying for vacation of public property and seeking a direction to the official Respondents for establishment of permanent *Sahulat Bazar* at *Chowk Purani Sabzi Mandi*, Sharaqpur alleged to be in the illegal possession of certain persons or the Petitioner. The Court vide Order dated 03.07.2015 directed the Deputy Commissioner, Sheikhpura to decide the pending application of Respondent No. 4 in this respect. Consequently, Order dated 12.08.2015 was passed by the Deputy Commissioner, Sheikhpura operating part whereof is reproduced for ready reference:-

“5. The TMO, Sharaqpur appeared on behalf of the TMA, Sharaqpur and contented that the property in question is reflected on the property register of the TMA at Page No. 05 & 39. According to site plan approved by the Municipal Committee, Sharaqpur in the year 1938 the measurement of the property was as under.-

East Side 46-ft.

West Side. 43-ft.

South Side. 22.7-ft.

North Side. 16.6-ft.

The property was used by the Municipal Committee for growing of vegetables and other public purposes. The said property was remained used for public welfare. He further stated that the land is public property but some persons encroached upon the property illegally and unlawfully. The property can be used for any public purpose.

6. After considering the facts of the case, perusal of record and hearing the Departmental Representative of TMA, Sharaqpur, I am of the view that according to record, the property in question is reflected in the property register of the then Municipal Committee, Sharaqpur since 1938.

Section 180 of the Punjab Local Government Ordinance, 2001:-

- (1) Subject to section 123, on commencement of this ordinance, the properties, assets and liabilities of the Local Councils, namely, Metropolitan Corporations, Municipal Corporations, District Councils, Municipal Committees, Town Committees, Union Councils under the Punjab Local Government Ordinance, 1979 (VI of 1979), shall be succeeded by the following local governments under this Ordinance:-
- a) City District Government in the case of Metropolitan Corporation or Municipal Corporation in concerned City District, as the case may be;
 - b) District Government in the case of District Council;
 - c) Tehsil Municipal Administration in the case of Municipal Corporations, Municipal Committees and Town Committees in the tehsil, as the case may and
 - d) Union Administration in the case of union Council;
- Section 124 of the Punjab Local Government Ordinance, 2001 is as under:-
- (1) Properties of local governments shall be used only for public purposes.
 - (2) Immovable properties of local governments shall, subject to section 125, not to be sold or permanently alienated,

The TMA, Sharaqpur is the successor of Municipal Committee and has the authority and has right to use the property under section 124 of the Ordinance ibid. The property is a public asset and has to be used only for public purpose. Under the circumstance, the petition is accepted and the Administrator TMA / Assistant Commissioner, Sharaqpur is directed to save the asset of the department and get it vacated from illegal occupants immediately and is directed to use the said property for public purposes only. The compliance report shall be sent to this office.”

4. Assailing the Order dated 12.08.2015 passed by the Deputy Commissioner, Sheikhpura, the Petitioner in his suit for declaration averred that the suit property measuring 02 Kanals fully identified in the plaint is situated within *Lal Lakeer*, Tehsil Sharaqpur Sharif, District Sheikhpura which was in the ownership and possession of predecessor-in-interest of the *Araien Baradari*, namely, Jamal Din who constructed Dera Jamal Din and dedicated it for the general use, welfare and benefit of

Araien community about 100 years ago. Since then, Dera Jamal Din is being used for the welfare of *Araien* community and is being administered and managed by his legal heirs through a registered *Anjuman* called the *Intzamia Committee*, Dera Hafiz Muhammad Jamal / the Petitioner. The suit was instituted for and on behalf of the said *Anjuman* through its Finance Secretary in whose name electricity meter of the Dera Jamal Din is also installed.

5. Explaining the background, it is stated that Respondent No. 4 is a private person who is a political opponent of the respectable persons of the *Araien* community and on account of *mala fide* intention and political victimization, filed an application before the Deputy Commissioner, Sheikhpura to the effect that part of Dera Jamal Din belonged to TMA, Sharaqpur which has been included by the Petitioner in Dera Jamal Din. Acting upon the same, Deputy Commissioner, Sheikhpura without notice, without intimation and without according a right of hearing, unilaterally ordered demolition operation against the Petitioner and taking over Dera Jamal Din pursuant to the impugned Order dated 12.08.2015. It was specifically alleged that about 03 Marla property of TMA, Sharaqpur was included in the constructed road and has never been encroached by the Petitioner as officially the road in 1938 was only 16½ feet wide but subsequently, its width was increased to 46 feet by including the area of TMA, Sharaqpur. Dera Jamal Din has always been existing at its present place, as such, the impugned Order dated 12.08.2015 is patently and inherently unlawful and ineffective qua the rights and interest of the Petitioner. Accordingly, it was prayed that the impugned Order dated 12.08.2015 be set aside by declaring it as unlawful; a decree of declaration be issued to the effect that the Petitioner is owner-in-possession of Dera Jamal Din and the Respondents have no concern with it.

6. The suit was resisted by the Respondents on legal and factual plane. It was stated that the Petitioner is not owner of Dera Jamal Din which is used for public purposes but conspicuously, it was never alleged that Dera Jamal Din belongs to TMA, Sharaqpur.

7. The Trial Court framed issues and recorded respective evidence of the parties, whereafter, suit of the Petitioner was dismissed and appeal preferred in this behalf by the Petitioner was also dismissed. Hence, this Petition.

8. Arguments heard and record perused.

9. Before proceeding further, it is pertinent to mention that the Courts below upon appreciation of evidence have concurrently discovered that Dera Jamal Din is situated within *Lal Lakeer* which was established by the predecessor-in-interest of the *Araien* community. However, it was not in the ownership of Jamal Din as *Mutaliya Naqoosh Sharaqpur* reveals that Dera Jamal Din has been used for *Fateha Khawani* and for religious or political matters. Further, since tube-well has also been installed thereon and 03-Marlas land part of Dera Jamal Din was used to widen the adjacent road, as such, Dera Jamal Din has always been used for the welfare of people. Therefore, by the establishment of *Sahulat Bazar*, the nature of Dera Jamal Din with respect to the objective of welfare of the people, would not change. Although maps of TMA, Sharaqpur brought on record clearly demonstrate the presence of Dera Jamal Din but at the same time, there is no dispute that it was constructed upon land belonging to *Abadi Deh*. Based on the above premises, claim of the Petitioner was declined and the suit was concurrently dismissed.

10. PW-1 to PW-4 deposed in line with the pleadings taken in the plaint. It was emphatically deposed that Dera Jamal Din is in existence since 1905-06 measuring about 02-Kanals which was reserved by the predecessor-in-interest of the *Araien* community for communal benefit and is being managed since then, accordingly by his legal heirs by forming a management committee. The map of Dera Jamal Din was approved and exists in the record of TMA, Sharaqpur. Requisite maps and documentary evidence were exhibited. It was categorically denied that any part of property owned and possessed by TMA, Sharaqpur has been included in Dera Jamal Din. The present action is based on political victimization and is an endeavor to grab Dera Jamal Din in the name of TMA, Sharaqpur to

deprive the *Araien* community from utilizing and benefitting therefrom. Part of land of TMA, Sharaqpur of Old Vegetable Market was used to widen an existing road and no part of property of TMA, Sharaqpur was encroached by management of Dera Jamal Din. Even the statement of PW-4 was not cross-examined and as such, the deposition contained in his examination-in-chief in support of contents of the plaint went unrebutted. Testimonies of DW-1 and DW-2 did not prove that Dera Jamal Din is owned or possessed by TMA, Sharaqpur.

11. The report of Local Commission further clarifies that the total area of City Sharaqpur within the *Lal Lakeer* is about 323 Kanals & 17 Marlas including Dera Jamal Din. No one holds title documents of any property within *Lal Lakeer* and possession determines the factum of ownership. Electricity meter is installed in the name of the Petitioner at Dera Jamal Din. The existence and functioning of Dera Jamal Din for the benefit of *Araien* community is fully established. The map of the TMA, Sharaqpur for the years 1974 (Ex-P1) as well as maps, 1959 and 1987 also testify the existence of Dera Jamal Din and there is no entry in revenue record qua ownership and possession in favor of TMA, Sharaqpur. Column No. 11 of *Wajib-ul-Arz* clearly mentions the existence of ‘*Takia*’ and expenses of usage of Rs. 1/- each to be given to ‘*Faqeran-e-Takia*’ and owners of ‘*Takia*’ for marriage ceremonies. Reports of Halqa Patwari dated 18.01.2019 and 20.08.2015 are in favor of the Petitioner. Previous suit for declaration of Respondent No. 4 claiming Dera Jamal Din was dismissed for want of evidence vide order dated 02.03.2015. Hence, the conclusion that Dera Jamal Din is not a private property but belongs to *Abadi Deh* and therefore, can be taken over by the TMA, Sharaqpur for establishment of *Sahulat Bazar* is misconceived.

12. It is unequivocally established on record that Dera Jamal Din falls within the *Lal Lakeer*, stands recorded in the ownership and possession of the residents, and has been in continuous use for the welfare of the *Araien* community. It is not and has never been the property of TMA, Sharaqpur, therefore, could not be owned, occupied, possessed or used by TMA,

Sharaqpur without consent of the Petitioner. As such, the conclusion drawn by the Deputy Commissioner, Sheikhpura in the impugned Order dated 12.08.2015 is incorrect and without any lawful basis. The mere fact that at present, the Government has cancelled registration of the Petitioner regarding management of Dera Jamal Din would not affect the nature and status of Dera Jamal Din or the right of the legal heirs of late Jamal Din to manage and administer it in the manner deemed appropriate in accordance with its objectives. In case titled, “Muhammad Siddique and 8 others Vs Shamlat Deh Village Kamala Bhag Through Muhammad Rasheed and another” (2006 MLD 1698), it was held that the entire land located within the ‘*Lal Lakeer*’ of ‘*abadi deh*’ is ‘*Shamlat Deh*’ which the proprietors of the village hold according to their ownership of agriculture land. Similarly, certain land is left out from common use by the owners of the village and is reserved for specific purposes like assembling of people, pastures for grazing of cattle, graveyard, mosque and ponds, etc. Such land left out for specific purposes cannot be used by any of the owners of the village to his exclusive use or to the disadvantage of other owners. For reference, also see case titled, “Jumla Bashindgan Deen Vs Muhammad Hussain and 2 Others” (2023 MLD 1204). Therefore, it is held that Dera Jamal Din is not the state property but a private property reserved for the specific communal needs and requirements of the *Araien* community by its owner-in-possession late Jamal Din and that Dera Jamal Din is not recorded in the ownership and possession of the TMA, Sharaqpur in the revenue record. Hence, TMA, Sharaqpur is not the owner-in-possession of Dera Jamal Din and cannot unilaterally and arbitrarily use it for public purposes in derogation or violation of rights and interests of the Petitioner. Hence, the impugned Order dated 12.08.2015 passed by the Deputy Commissioner, Sheikhpura is unlawful and without any legal effect.

13. In view of the above, this Petition is **allowed** and the impugned Judgments and Decrees dated 28.06.2022 and 16.06.2023 are set aside along with the impugned Order dated 12.08.2015 passed by the Deputy Commissioner, Sheikhpura. In consequence thereof, suit of the

Petitioner is **allowed** as prayed for and the Respondents are directed to restore ownership and possession of Dera Jamal Din to the Petitioner which shall be used in the same manner and purpose as before the passing of the impugned Order dated 12.08.2015.

(ABID HUSSAIN CHATTHA)
Judge

Approved for reporting.

Judge

Waqar